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SALES AGENCY AND COMMISSION AGREEMENT

(Commission Agent Model — all customer payments made directly to the Company)

This Sales Agency and Commission Agreement (the “Agreement”) is made at [City], Pakistan on this ____ day of _____, 20____ (the “Effective Date”), by and between:

(1) [LEGAL / BUSINESS NAME OF TAXNEST], having its principal place of business at [Address], Pakistan, operating the software products and services under the brand names “TaxNest”, “NestPOS”, “FBR POS” and “Digital Invoicing” (hereinafter the “Company”, which expression shall include its successors and permitted assigns); and

(2) [FULL NAME OF AGENT], son/daughter of [Father’s Name], holder of CNIC No. [____-____-____], resident of [Address] (hereinafter the “Agent”, which expression shall include his/her heirs and legal representatives).

The Company and the Agent are hereinafter individually referred to as a “Party” and collectively as the “Parties”.

WHEREAS the Company owns and operates cloud-based point-of-sale and tax invoicing software services, including NestPOS (PRA POS), FBR POS and Digital Invoicing (collectively, the “Services”), offered on a subscription basis through the website taxnest.com.pk;

AND WHEREAS the Agent has represented that he/she has the capability to market and promote the Services and wishes to be appointed as a non-exclusive sales agent of the Company on a commission basis;

AND WHEREAS the Company is willing to appoint the Agent on the terms and conditions set out in this Agreement.

NOW, THEREFORE, in consideration of the mutual covenants contained herein, the Parties agree as follows:

1. APPOINTMENT AND TERRITORY

1.1 The Company hereby appoints the Agent, and the Agent accepts the appointment, as a non-exclusive sales agent of the Company to market and promote the Services within the territory described in Schedule B (the “Territory”).

1.2 The appointment is non-exclusive. The Company remains free to sell the Services itself and to appoint other agents, resellers or channels within or outside the Territory. Exclusivity for the Territory may only be granted in writing by the Company and shall in every case be conditional upon the Agent continuously meeting the Minimum Sales Targets in Schedule B.

1.3 The Agent shall not market the Services outside the Territory without the Company's prior written consent.

2. RELATIONSHIP OF THE PARTIES

2.1 The Agent is an independent contractor. Nothing in this Agreement creates any employment, partnership, joint venture or franchise relationship between the Parties.

2.2 The Agent has no authority to conclude contracts in the name of the Company, to vary the Company's published prices or terms, to give any warranty or commitment on behalf of the Company, or to bind the Company in any manner whatsoever, except as expressly authorised in writing by the Company.

2.3 The Agent is solely responsible for his/her own expenses, taxes, and statutory obligations arising from his/her activities under this Agreement.

3. DUTIES OF THE AGENT

3.1 The Agent shall diligently market and promote the Services in the Territory, identify prospective customers, arrange and conduct product demonstrations, and assist customers with sign-up and initial onboarding (basic setup and first training).

3.2 The Agent shall provide first-line assistance to customers introduced by the Agent (guidance on usage and setup). All technical support, bug fixes and platform matters remain the responsibility of the Company.

3.3 The Agent shall conduct business honestly and lawfully, and shall not make any representation, claim or promise regarding the Services that is untrue or that goes beyond the Company's official published materials, including without limitation any claim regarding tax exemptions, guaranteed approvals, or regulatory outcomes from PRA, FBR or any other authority.

3.4 The Agent shall promptly report to the Company all customer leads, complaints and market feedback, and shall keep accurate records of his/her activities under this Agreement.

3.5 The Agent shall not modify, copy, decompile, reverse engineer or interfere with the Services or any part thereof, nor develop or assist in developing any competing software.

4. DUTIES OF THE COMPANY

4.1 The Company shall provide the Services to customers in accordance with its published terms of service, and shall be responsible for hosting, maintenance and technical support of the platform.

4.2 The Company shall provide the Agent, free of cost, with reasonable marketing materials, product training and demo access necessary for the performance of the Agent's duties.

4.3 The Company shall maintain records of all subscriptions attributable to the Agent and shall share with the Agent a monthly statement of such subscriptions and the commission payable.

5. PRICES AND CUSTOMER PAYMENTS

5.1 All prices, packages, discounts and promotional offers for the Services shall be determined solely by the Company and may be revised by the Company from time to time. The Agent shall quote only the Company's current published prices and shall not offer any discount, rebate or concession without the Company's prior written approval.

5.2 ALL customer payments for the Services shall be made by the customer DIRECTLY to the Company through the Company's designated bank account(s) or official payment channels. The Agent shall have no authority to collect, receive or hold any money from any customer in the Agent's own name or account, whether in cash or otherwise.

5.3 Any amount received by the Agent from a customer in violation of Clause 5.2 shall be held in trust for the Company, shall be deposited with the Company within twenty-four (24) hours, and shall constitute a material breach of this Agreement entitling the Company to terminate forthwith.

6. COMMISSION

6.1 Subject to the terms of this Agreement, the Company shall pay the Agent commission at the rates set out in Schedule A on subscription payments actually received and cleared by the Company from customers introduced by the Agent and registered against the Agent's code in the Company's records ("Qualified Sales").

6.2 Commission shall accrue only when the corresponding customer payment has been received in full and has cleared into the Company's account. No commission shall accrue on trials, unpaid invoices, taxes, or amounts subsequently refunded or charged back.

6.3 Commission for a calendar month shall be paid on or before the tenth (10th) day of the following month by bank transfer to the Agent's designated account, subject to any withholding or deduction required by law.

6.4 If a customer payment on which commission has been paid is later refunded, reversed or charged back, the corresponding commission shall be repayable by the Agent and may be set off against future commission.

6.5 The Company's records shall be conclusive evidence of Qualified Sales and commission calculations, absent manifest error. Any dispute regarding a monthly statement must be raised in writing within thirty (30) days of its issuance, failing which the statement shall be deemed accepted.

6.6 Upon termination of this Agreement: (a) commission accrued on Qualified Sales up to the date of termination shall be paid in the normal course; (b) no commission shall be payable on renewals or payments received after the date of termination, unless otherwise agreed in writing; and (c) no commission shall be payable where this Agreement is terminated for the Agent's fraud, misappropriation or material breach.

7. MINIMUM SALES TARGETS

7.1 The Agent shall use best efforts to achieve the Minimum Sales Targets set out in Schedule B.

7.2 If the Agent fails to achieve the Minimum Sales Targets for three (3) consecutive months, the Company may, at its option: (a) withdraw any exclusivity granted; (b) reduce the Territory; or (c) terminate this Agreement on seven (7) days' written notice.

8. BRAND AND MARKETING

8.1 The Company grants the Agent a limited, revocable, non-transferable permission to use the Company's brand names and logos solely for marketing the Services in the Territory during the term of this Agreement, and only in the form of materials provided or approved in writing by the Company.

8.2 The Agent shall not register, or attempt to register, any trademark, trade name, domain name or social media identity containing or confusingly similar

to “TaxNest”, “NestPOS” or any other brand of the Company.

8.3 All goodwill arising from the Agent’s use of the Company’s brands shall inure solely to the Company. All such use shall cease immediately upon termination of this Agreement.

9. CUSTOMERS AND DATA

9.1 All customers of the Services, whether or not introduced by the Agent, are and shall remain customers of the Company. All customer relationships, accounts, subscriptions, and all data relating to customers and their businesses are the exclusive property of the Company (or the respective customers, as applicable).

9.2 The Agent shall not use customer information for any purpose other than performing this Agreement, and shall not disclose, sell or transfer any customer list or customer data to any third party, whether during or after the term of this Agreement.

10. CONFIDENTIALITY

10.1 “Confidential Information” means all non-public information disclosed by or on behalf of the Company, including prices and margins, commission rates, customer lists and data, business plans, software, documentation and know-how.

10.2 The Agent shall keep all Confidential Information strictly confidential, use it solely for the performance of this Agreement, and not disclose it to any third party. This obligation shall survive termination of this Agreement for a period of three (3) years, and indefinitely in respect of customer data and trade secrets.

11. NON-COMPETITION AND NON-SOLICITATION

11.1 During the term of this Agreement and for twelve (12) months after its termination, the Agent shall not, within the Territory, directly or indirectly promote, sell, develop or assist any business that offers point-of-sale or tax invoicing software services competing with the Services.

11.2 During the term of this Agreement and for twelve (12) months after its termination, the Agent shall not solicit or entice away from the Company: (a) any customer of the Company; or (b) any employee, agent or contractor of the Company.

11.3 The Parties acknowledge that the restrictions in this Section are reasonable and necessary to protect the Company's legitimate business interests. If any restriction is held to be excessive, it shall apply with such reduced scope or duration as the competent court considers reasonable.

12. SECURITY DEPOSIT

12.1 The Agent shall, on or before signing this Agreement, deposit with the Company a refundable security deposit (the "Deposit") of: (a) PKR 100,000 (one hundred thousand rupees) in the case of a non-exclusive appointment; or (b) PKR 500,000 (five hundred thousand rupees) where the Agent is granted exclusivity for the Territory under Schedule B. The Deposit shall carry no profit or interest.

12.2 The Company may deduct from the Deposit any amount due from the Agent under this Agreement (including repayable commission and amounts collected in breach of Clause 5.2). The balance of the Deposit shall be refunded within thirty (30) days of termination and settlement of accounts.

13. TERM AND TERMINATION

13.1 This Agreement shall commence on the Effective Date and continue for an initial term of one (1) year, and shall renew automatically for successive one-year terms unless either Party gives written notice of non-renewal at least thirty (30) days before the end of the then-current term.

13.2 Either Party may terminate this Agreement for convenience by giving thirty (30) days' prior written notice to the other Party.

13.3 The Company may terminate this Agreement with immediate effect by written notice if the Agent: (a) collects or attempts to collect customer payments in breach of Clause 5.2; (b) commits fraud, misrepresentation or any dishonest act; (c) makes unauthorised claims or promises regarding the Services; (d) breaches Sections 9, 10 or 11; or (e) commits any other material breach not remedied within fourteen (14) days of written notice.

13.4 Upon termination: (a) the Agent shall immediately cease all use of the Company's brands and materials and return or destroy all Confidential Information; (b) accrued rights and the provisions of Sections 6.6, 9, 10, 11, 14 and 16 shall survive; and (c) the Agent shall have no claim for goodwill, compensation or damages by reason of termination in accordance with this Agreement.

14. LIABILITY

14.1 The Services are provided to customers under the Company's published terms of service. Each customer remains solely responsible for its own tax and regulatory compliance (including PRA and FBR obligations). The Agent shall not represent otherwise.

14.2 The Company's total aggregate liability to the Agent under or in connection with this Agreement shall not exceed the total commission paid to the Agent in the six (6) months preceding the claim. Neither Party shall be liable to the other for any indirect or consequential loss, or loss of profit or goodwill.

14.3 The Agent shall indemnify the Company against all losses, claims and expenses arising from the Agent's breach of this Agreement, unauthorised representations, or unlawful acts.

15. GENERAL

15.1 Compliance with law. The Agent shall comply with all applicable laws in performing this Agreement and shall not offer or pay any bribe, kickback or unlawful inducement to any person.

15.2 Notices. All notices shall be in writing and delivered by hand, courier, registered post or email to the addresses stated above (or such other address as notified in writing) and shall be deemed received on delivery.

15.3 Assignment. The Agent shall not assign or transfer this Agreement or any rights hereunder without the Company's prior written consent.

15.4 Entire agreement; amendment. This Agreement (with its Schedules) constitutes the entire agreement between the Parties regarding its subject matter and supersedes all prior discussions. Any amendment must be in writing and signed by both Parties.

15.5 Severability; waiver. If any provision is held invalid, the remainder shall continue in force. No failure or delay in exercising any right shall operate as a waiver.

15.6 Governing law and jurisdiction. This Agreement shall be governed by the laws of the Islamic Republic of Pakistan, and the courts at [Lahore] shall have exclusive jurisdiction over all disputes arising out of or in connection with this Agreement.

IN WITNESS WHEREOF the Parties have executed this Agreement on the day and year first above written.

For the Company

The Agent

Signature

Signature

Name: _____
Title: _____
CNIC: _____
Date: _____

Name: _____
CNIC: _____
Date: _____

Witness 1

Witness 2

Name: _____
CNIC: _____

Name: _____
CNIC: _____

SCHEDULE A — COMMISSION RATES

1. New subscriptions (payments received during the first twelve (12) months of each customer introduced by the Agent): [20]% of the net subscription amount received (excluding taxes).
2. Renewals (payments received after the first twelve months, while this Agreement remains in force): [10]% of the net subscription amount received (excluding taxes).
3. One-time services or hardware (if any, sold through the Company): [5]% of the net amount received.
4. Commission is calculated on amounts actually received and cleared, net of taxes, refunds and chargebacks. Rates may be revised prospectively by the Company with thirty (30) days' written notice.

SCHEDULE B — TERRITORY AND MINIMUM SALES TARGETS

1. Territory: [City / District / Tehsil], Pakistan.
2. Exclusivity: [None / Exclusive for the Territory, conditional on targets].
3. Minimum Sales Target: at least [5] new paid subscriptions per calendar month, measured monthly and reviewed quarterly.

SCHEDULE C — DESIGNATED PAYMENT CHANNELS OF THE COMPANY

- 1. Bank account: [Bank name, account title, IBAN].
- 2. Other official channels: [e.g. company payment link on taxnest.com.pk].
- 3. Customers must be instructed to pay ONLY through the channels listed in this Schedule. Payment to any personal account of the Agent is prohibited.

Initials (Company): _____ **Initials (Agent):** _____